



Check visa details and conditions

See visa conditions

Select a visa below...

Student visa (subclass 500) ▼

Not sure which visa you have? Check your conditions (VEVO) or have a look at the visa grant letter you received.

The following condition(s) might be attached to this visa:

8104 - Work limitation (#)

This condition means you cannot work more than 40 hours a fortnight, unless you are a family member of a Student visa holder.

Family members of a Student visa holder

Family members of a Student visa holder cannot work before the student's course starts. That is unless the Student visa holder or their family member held another visa that allowed them to work in Australia.

Working while the course is in session:

- Family members can work up to 48 hours a fortnight while the course is in session.
- If the student is studying a Master's Degree by Research or Doctoral Degree, they and their family members can work more than 48 hours a fortnight.
- If the student is studying a Master's Degree by Coursework, or a Master's Degree (Extended), their family members can also work more than 48 hours a fortnight. However, the student can still only work up to 48 hours a fortnight while their course is in session.
- A fortnight is a period of 14 days starting on a Monday.

Working when the course is not in session:

[Ask a question](#)

- Student visa holders can work unlimited hours when their course is not in session.
- Their family members still have limited work rights.

Make sure to check your visa conditions regularly, including your work rights.

To check your visa details, go to [VEVO \(/visas/already-have-a-visa/check-visa-details-and-conditions/overview\)](https://vevo.gov.au/visas/already-have-a-visa/check-visa-details-and-conditions/overview).

Employers seeking to hire the family member of a primary Student visa holder should get evidence of the following:

- the relationship, such as a visa grant letter, marriage or birth certificate
- that the primary Student visa holder has commenced their course, such as a Confirmation of Enrolment or a letter from the relevant education provider.

Employers who have hired a family member with this visa condition should ensure they are not working more hours than the employee's visa allows.

Understanding your work rights

The department is working with the Fair Work Ombudsman to help employees and employers understand and follow Australian Workplace laws.

Information on pay rates, shift calculations, leave arrangements and notice and redundancy entitlements is in the [Pay and Conditions Tool \(PACT\)](http://calculate.fairwork.gov.au/Home/Help) (<http://calculate.fairwork.gov.au/Home/Help>).

For more information on workplace rights and entitlements for visa holders and migrant workers visit [The Fair Work Ombudsman](https://www.fairwork.gov.au/how-we-will-help/templates-and-guides/fact-sheets/rights-and-obligations/visa-holders-and-migrant-workers-workplace-rights-and-entitlements) (<https://www.fairwork.gov.au/how-we-will-help/templates-and-guides/fact-sheets/rights-and-obligations/visa-holders-and-migrant-workers-workplace-rights-and-entitlements>)

For the full list of conditions relevant to your visa, see the [Federal Register of Legislation](https://www.legislation.gov.au/) (<https://www.legislation.gov.au/>).

8105 - Work limitation (#)

This condition means you cannot work in Australia before your course starts unless at the time of applying for this visa, you held another visa that permitted you to work in Australia.

You also cannot work more than 48 hours a fortnight when your course of study or training is in session.

A course of study is in session:

- for the duration of the school semesters (including when exams are being held)
- you take another course that will count towards your main course during a term break.

If you can work over 48 hours a fortnight

You can only work over 48 hours a fortnight if:

- you hold a Student visa granted in relation to a masters degree by research or doctorate degree and your masters degree by research or doctorate degree has started
- it is a registered part of your course that is mandatory, that was specified as a requirement of the course when the course particulars were entered into the Commonwealth Register of Institutions and Courses for Overseas Students

A course is not in session:

- during scheduled course breaks
- if your course was deferred or suspended in line with [Standard 9 of the National Code of Practice for Providers of Education and Training to Overseas Students](https://internationaleducation.gov.au/Regulatory-Information/Pages/National-Code-2018-Factsheets-.aspx) (<https://internationaleducation.gov.au/Regulatory-Information/Pages/National-Code-2018-Factsheets-.aspx>)
- if you hold a valid visa and have completed your course as listed on your confirmation of enrolment
- if your enrolment has been cancelled due to the default of your education provider and until you get a new enrolment and start the course.

A fortnight is a period of 14 days starting on a Monday.

An example of a Student visas holder's 48 hours a fortnight working limit is:

- week 1: 15 hours work
- week 2: 30 hours work
- week 3: 30 hours work
- week 4: 10 hours work.

The student may not have breached their work conditions in the fortnight comprising the 14 days of weeks 1 and 2 (45 hours worked) or in the fortnight comprising the 14 days of weeks 3 and 4 (40 hours). However, if in session the student will be in breach of their work conditions, in the fortnight comprising the 14 days of weeks 2 and 3 (60 hours worked).

For example: a student is studying a commercial cookery course on a subclass 500 visa and is offered work experience during school holidays. The Student works 75 hours a fortnight and is allowed to work unlimited hours while the course is not in session. The Student visa holder did not break their work condition.

Work experience is included in a student's work restriction of 48 hours a fortnight whether it is paid or unpaid.

The exception to this is if a work experience unit forms a mandatory component of a student's course and is included in the CRICOS registration of that course. In this circumstance, the work experience will not be included in the student's work restriction of 48 hours a fortnight. Any work experience/work placement that is not a mandatory course requirement, or that is in excess of the period required in the course registration, is included in a student's work limitation of 48 hours a fortnight.

For example: a pharmacy student undertaking a mandatory 4 week block of on the job training has unlimited work rights for the purpose and duration of the work placement, as documented in the registered course structure.

Examples of definition of work:

- You do a shift at a restaurant as part of a roster, but not during your rostered unpaid meal break.
- You are a taxi driver who has signed in and is ready to receive passengers, until you sign out for a break or your shift ends.

As a Student visa holder, you are considered to have worked if you have:

- attended a place of work for a period by a roster or timesheet (but not during unpaid breaks)
- been 'clocked on' to an electronic system that records work activity
- received remuneration for work, as indicated in a payslip you have been given (unless you give documentary evidence that you were not working during this time).

You can work more than one job as long as the total hours are not more than 48 hours in a fortnight.

If you are an employer seeking to hire a Student visa holder, you should request evidence that they commenced their course. This evidence can be a confirmation of enrolment or a letter from the education provider.

Employers who have hired a Student visa holder should ensure that the student/employee is not working more hours than the employee's visa allows.

Understanding your work rights

The Department is working with the Fair Work Ombudsman to help employees and employers understand and follow Australian Workplace laws.

Information on pay rates, shift calculations, leave arrangements and notice and redundancy entitlements is in the [Pay and Conditions Tool \(PACT\)](http://calculate.fairwork.gov.au/Home/Help) (<http://calculate.fairwork.gov.au/Home/Help>).

The Fair Work Ombudsman website has more information on workplace rights and entitlements for [visa holders and migrant workers](https://www.fairwork.gov.au/how-we-will-help/templates-and-guides/fact-sheets/rights-and-obligations/visa-holders-and-migrant-workers-workplace-rights-and-entitlements) (<https://www.fairwork.gov.au/how-we-will-help/templates-and-guides/fact-sheets/rights-and-obligations/visa-holders-and-migrant-workers-workplace-rights-and-entitlements>).

For the full list of conditions relevant to your visa, see the [Federal Register of Legislation](https://www.legislation.gov.au/) (<https://www.legislation.gov.au/>).

8201 - Maximum 3 months study (#)

While in Australia, you must not engage, for more than 3 months, in any studies or training.

See the [Regulations](https://www.legislation.gov.au/F1996B03551/latest/versions) (<https://www.legislation.gov.au/F1996B03551/latest/versions>)

Additional information

In certain circumstances, this restriction does not apply to:

- subclass 590 (Student Guardian) visas
- subclass 602 (Medical Treatment) visas
- subclass 675 (Medical Treatment (Short Stay)) visas
- subclass 685 (Medical Treatment (Long Stay)) visas

Subclass 590 visa holders

You can study up to 20 hours a week on an English Language Intensive Course for Overseas Students (ELICOS).

Subclass 602, 675 and 685 visa holders

You may study in Australia for more than 3 months if:

- you are under 18
- your circumstances have changed while in Australia
- you have written permission to do so because of your circumstances

Other visa holders

You must not study or train in Australia for more than 3 months in total.

For the full list of conditions relevant to your visa, see the [Federal Register of Legislation](https://www.legislation.gov.au/) (<https://www.legislation.gov.au/>).

8202 - Meet course requirements (#)

You must:

- remain enrolled in a registered course (if you are a Foreign Affairs or Defence sponsored student or a secondary exchange student you must maintain full-time enrolment in your course of study or training)
- maintain enrolment in a registered course that is the same [Australian Qualifications Framework \(AQF\) level](http://www.aqf.edu.au/) (<http://www.aqf.edu.au/>) or higher for which we granted your student visa, unless changing from AQF level 10 to level 9. See: [Change in study situation](/change-in-situation/study-situation/) (</change-in-situation/study-situation/>).
- maintain satisfactory attendance in your course and course progress for each study period as required by your education provider.

Note: A registered course is one that is on the [Commonwealth Register of Institutions and Courses for Overseas Students \(CRICOS\)](http://cricos.education.gov.au/) (<http://cricos.education.gov.au/>).

Gap between courses

Generally course gaps should not be more 2 months. A course gap can be more than 2 months if:

- it is the end of the academic year study break
- you are affected by [education provider default](https://immi.homeaffairs.gov.au/visas/getting-a-visa/visa-listing/student-500/education-provider-default) (<https://immi.homeaffairs.gov.au/visas/getting-a-visa/visa-listing/student-500/education-provider-default>)
- you have completed your course and you are applying for a new visa

Additional information

See [Your study situation has changed](https://immi.homeaffairs.gov.au/change-in-situation/study-situation) (<https://immi.homeaffairs.gov.au/change-in-situation/study-situation>).

8203 - Limited study change (#)

You must not change your course of study, thesis or research topic without the approval of the Minister.-

This approval can only be given after the Minister has obtained an assessment from the competent Australian authorities that you are not likely to be directly or indirectly a risk to Australian national security.

If you are considering changing your thesis, major or research topic you must: complete [Form 1221 - Additional personal particulars information \(PDF\)](/form-listing/forms/1221.pdf) (</form-listing/forms/1221.pdf>) and submit a [8203/8204 Change of Study Assessment Request](/change-in-situation/study-situation/study-assessment) (</change-in-situation/study-situation/study-assessment>).

See the regulation (<https://www.legislation.gov.au/F1996B03551/latest/versions>)

8204 - Study limitations (#)

You must not undertake or change your course of study, thesis or research topic without the approval of the Minister, for a:

- graduate certificate
- graduate diploma
- master's degree
- doctorate, or
- any bridging course required as a prerequisite to a course of study or research for a master's degree or doctorate

This approval can only be given after the Minister has obtained an assessment from the competent Australian authorities that you are not likely to be directly or indirectly a risk to Australian national security.

If you are considering changing your thesis, major or research topic you must complete [Form 1221 - Additional personal particulars information \(PDF\)](#) ([/form-listing/forms/1221.pdf](#)) and submit a [8203/8204 Change of Study Assessment Request](#) ([/change-in-situation/study-situation/study-assessment](#)).

See the Regulation (<https://www.legislation.gov.au/F1996B03551/latest/versions>)

8208 - No study change related to critical technology without approval (#)

If your visa is subject to condition 8208 and you started your course after 1 April 2024, you must not start critical technology related studies without the approval of the Minister of Home Affairs. If you do not comply with this condition, we may cancel your visa.

We have specified the technologies that we consider critical technology for condition 8208 and related purposes in [Migration \(Critical Technology – Kinds of Technology\) Specification \(LIN24/010\) 2024](#) (<https://www.legislation.gov.au/F2024L00182>).

Critical technology related study includes a:

- postgraduate research course that relates to **critical technology** – leading to either a Masters degree (research) or doctoral degree
- thesis or research topic that relates to **critical technology** (in a course at Masters degree (research) or doctoral degree level)
- bridging course that is a prerequisite to a postgraduate research course that relates to **critical technology**.

Visa holders do not need approval to start a Masters by coursework.

To request approval to start a critical technology-related course in the postgraduate research sector:

1. Login to ImmiAccount (<https://online.immi.gov.au/lusc/login>).
2. Go to the 'update details' section.
3. Click on the link for 'Change of course approval request'.
4. Complete the 'Condition 8208 – Change of course approval request form' and provide any evidence we request.

The Minister will approve a request to start critical technology related study if the Minister is satisfied that there is not an unreasonable risk of an unwanted transfer of critical technology by the visa holder.

Note: Condition 8208 does not apply in relation to the intended course of study, or activities related to study in Australia, evidenced in your student visa application.

For more information see [Critical technology—enhanced visa screening measures](https://www.homeaffairs.gov.au/about-us/our-portfolios/national-security/critical-technology)
(<https://www.homeaffairs.gov.au/about-us/our-portfolios/national-security/critical-technology>).

8303 - Not be disruptive (#)

You must not become involved in activities disruptive to, or violence threatening harm to, the Australian community or a group within the Australian community.

For example, engaging or promoting extremist views and interrupting the operation of the Australian community.

8501 - Maintain adequate health insurance (#)

You must have and maintain [adequate health insurance](#) ([/help-support/meeting-our-requirements/health/adequate-health-insurance](#)) for the whole of your stay in Australia.

For more information on how this condition might apply to you see [your visa details](#)
(<https://immi.homeaffairs.gov.au/visas/getting-a-visa/visa-listing>).

8516 - Continue to satisfy the criteria for the grant of the visa (#)

You must continue to satisfy the criteria for the grant of the visa.

8517 - Maintain adequate arrangements for the education of your school-age dependants (#)

You must maintain adequate arrangements for the education of your school-age dependants who are in Australia for more than 3 months as a dependant on your visa.

For the full list of conditions relevant to your visa, see the [Federal Register of Legislation](#)
(<https://www.legislation.gov.au/>).

8518 - Maintain adequate arrangements for your education (#)

You must maintain adequate arrangements for your education while you are in Australia.

See what to do if there are [changes to your study situation \(https://immi.homeaffairs.gov.au/change-in-situation/study-situation\)](https://immi.homeaffairs.gov.au/change-in-situation/study-situation).

8532 - Maintaining welfare arrangements for minors (#)

If you are younger than 18 years of age, you must have accommodation and support, and your general welfare must be maintained for the duration

To maintain your welfare, you must stay in Australia with:

- your parent or legal custodian or
- a relative who has been nominated by your parents or custodians who is aged over 21 and is of good character or
- have accommodation, support and general welfare arrangements in place that have been approved by your education provider

You must not change your arrangements without the written approval of your education provider. If your welfare arrangements are approved by your education provider you must not travel to Australia until your welfare arrangements start

- current and previous 570-576 visa holders, [See the Regulations \(https://www.legislation.gov.au/F1996B03551/latest/versions\)](https://www.legislation.gov.au/F1996B03551/latest/versions)
- 500 visa holders, [See the Regulation \(https://www.legislation.gov.au/F1996B03551/latest/versions\)](https://www.legislation.gov.au/F1996B03551/latest/versions)

8533 - Inform provider of address (#)

You must let your education provider know your residential address within 7 days of arriving in Australia if you were outside Australia when your visa was granted.

If your residential address changes you must let your education provider know within 7 days after the change.

Notify your current education provider that you have changed your education provider within 7 days of receiving:

- a confirmation of enrolment from your new education provider, or
- evidence you have been enrolled by the new education provider

We will contact you through your school. If you don't update your contact details we won't be able to contact you.

[See the Regulation \(https://www.legislation.gov.au/F1996B03551/latest/versions\)](https://www.legislation.gov.au/F1996B03551/latest/versions)

8534 - No further stay (#)

While you are in Australia, we will not grant you a new substantive visa (<https://immi.homeaffairs.gov.au/help-support/glossary#Substantive-visa>), other than:

- a Subclass 485 (Temporary Graduate) visa, or
- a Subclass 590 (Student Guardian) visa, or
- a Protection visa

For the full list of conditions relevant to your visa, see the [Federal Register of Legislation](https://www.legislation.gov.au/) (<https://www.legislation.gov.au/>).

Additional information

Condition 8534 can be applied to subclass 500 Student visa holders and their family members at our discretion.

The case officer that assesses your application will decide whether to apply the condition.

Applying for a graduate visa

If condition 8534 applies to your current visa you can only apply for the Temporary Graduate visa using the paper form.

You don't need to ask us to waive the condition before you submit your application.

Download and complete Form 1409 Application for a Temporary Graduate visa. Ensure you tick the box saying you want to waive this condition.

Applying for any other visa

If you have completed the course we granted you the visa for, you don't need to ask us to waive condition 8534 to make a valid application for one of these visas:

- General Skilled Migration visa (for example Subclass 189 or 190)
- Subclass 132 (Business Talent) visa
- Subclass 186 (Employee Nomination Scheme) visa
- Subclass 187 (Regional Sponsored Migration Scheme) visa
- Subclass 188 (Business Innovation and Investment (Provisional)) visa
- Subclass 482 (Temporary Skill Shortage) visa

You can ask us to waive this condition (<https://immi.homeaffairs.gov.au/visas/already-have-a-visa/check-visa-details-and-conditions/waivers-and-permissions/no-further-stay-waiver>) in limited circumstances if you want to apply for any other visa, including a further Student visa.

8535 - No further stay (#)

While you are in Australia, we will not grant you a new substantive visa other than:

- a Student (Temporary) (Class TU) visa we grant you because you have support from the Commonwealth or a foreign government, or
- a protection visa

For the full list of conditions relevant to your visa, visit the [Federal Register of Legislation](https://www.legislation.gov.au/) (<https://www.legislation.gov.au/>).

Additional information

Condition 8535 is mandatory on subclass 500 Student visas for students sponsored by the Department of Foreign Affairs and Trade or Department of Defence.

Applying for a student visa

If condition 8535 applies to your current visa, attach a letter of support from the Australian Government or a foreign government with your new application. You don't need to ask us to waive the condition before you submit your application.

Applying for any other visa

If condition 8535 applies to your current visa and you want to apply for any other visa, there are some limited circumstances in which you can ask us to waive this condition.

You can't apply for a further visa in Australia other than:

- a Student (Temporary) (Class TU), with the support of the Commonwealth or a foreign government, or
- a protection visa

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